

AMENDMENT TO THE CALIFORNIA RULES OF COURT
Adopted by the Judicial Council on March 11, 2022, effective March 11, 2022

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1 **Rule 3.2200. Application**

2
3 Except as otherwise provided in chapter 2 of the rules in this division, which govern
4 actions under Public Resources Code sections 21168.6.6–21168.6.8, 21178–21189.3, and
5 21189.50–21189.57, and 21189.70–21189.70.10, the rules in this chapter apply to all
6 actions brought under the California Environmental Quality Act (CEQA) as stated in
7 division 13 of the Public Resources Code.

8
9 *Rule 3.2200 amended effective March 11, 2022; adopted effective July 1, 2014; previously*
10 *amended effective January 1, 2017.*
11

12
13 **Chapter 2. California Environmental Quality Act Proceedings ~~Under Public~~**
14 **~~Resources Code Sections 21168.6, 21178–21189.3, and 21189.50–21189.57~~ Involving**
15 **Streamlined CEQA Projects**
16

17 **Article 1. General Provisions**
18

19 **Rule 3.2220. Definitions and application**
20

21 **(a) Definitions**
22

23 As used in this chapter:

24
25 (1) A “streamlined CEQA project” means any project within the definitions
26 stated in (2) through (7).
27

28 ~~(1)(2)~~ (2) An “environmental leadership development project” or “leadership project”
29 means a project certified by the Governor under Public Resources Code
30 sections 21182–21184.
31

32 ~~(2)(3)~~ (3) The “Sacramento entertainment and sports center project” or “Sacramento
33 arena project” means an entertainment and sports center project as defined by
34 Public Resources Code section 21168.6.6, for which the proponent provided
35 notice of election to proceed under that statute described in section
36 21168.6.6(j)(1).
37

38 (4) An “Oakland sports and mixed-use project” or “Oakland ballpark project”
39 means a project as defined in Public Resources Code section 21168.6.7 and
40 certified by the Governor under that section.
41

42 (5) An “Inglewood arena project” means a project as defined in Public Resources
43 Code section 21168.6.8 and certified by the Governor under that section.
44

1 ~~(3)~~(6) An “expanded capitol building annex project” means a state capitol building
2 annex project, annex project–related work, or state office building project as
3 defined by Public Resources Code section 21189.50.
4

5 (7) An “Old Town Center transit and transportation facilities project” or “Old
6 Town Center project” means a project as defined in Public Resources Code
7 section 21189.70.
8

9 *(Subd (a) amended March 11, 2022; previously amended effective January 1, 2017.)*
10

11 **(b) Proceedings governed**
12

13 The rules in this chapter govern actions or proceedings brought to attack, review,
14 set aside, void, or annul the certification of the environmental impact report or the
15 grant of any project approvals for ~~the Sacramento arena project, a leadership~~
16 ~~project, or a capitol building annex project~~ a streamlined CEQA project. Except as
17 otherwise provided in Public Resources Code sections 21168.6.6–21168.6.8,
18 21178–21189.3, ~~and 21189.50–21189.57, and 21189.70–21189.70.10~~ and these
19 rules, the provisions of the Public Resources Code and the CEQA Guidelines
20 adopted by the Natural Resources Agency (Cal. Code Regs., tit. 14, § 15000 et
21 seq.) governing judicial actions or proceedings to attack, review, set aside, void, or
22 annul acts or decisions of a public agency on the grounds of noncompliance with
23 the California Environmental Quality Act and the rules of court generally apply in
24 proceedings governed by this rule.
25

26 *(Subd (b) amended effective March 11, 2022; previously amended effective January 1,*
27 *2017.)*
28

29 **(c) Complex case rules**
30

31 * * *

32
33 *Rule 3.2220 amended effective March 11, 2022; adopted effective July 1, 2014; previously*
34 *amended effective January 1, 2017.*
35

36 **Rule 3.2221. Time**
37

38 **(a) Extensions of time**
39

40 * * *

41
42 **(b) Extensions of time by parties**
43

44 If the parties stipulate to extend the time for performing any acts in actions
45 governed by these rules, they are deemed to have agreed that the statutorily
46 prescribed time for resolving the action may be extended ~~beyond 270 days~~ by the

number of days by which the performance of the act has been stipulated to be extended, and to that extent to have waived any objection to noncompliance with the deadlines for completing review stated in Public Resources Code sections 21168.6.6(e)–(d), 21168.6.8, 21185, and 21189.51, and 21189.70.3. Any such stipulation must be approved by the court.

(Subd (b) amended effective March 11, 2022; previously amended effective January 1, 2017.)

(c) Sanctions for failure to comply with rules

If a party fails to comply with any time requirements provided in these rules or ordered by the court, the court may issue an order to show cause as to why one of the following sanctions should not be imposed:

(1)–(2) * * *

(3) If the failure to comply is by respondent or a real party in interest, removal of the action from the expedited procedures provided under Public Resources Code sections 21168.6.6(e)–(d), 21168.6.8, 21185, and 21189.51, and 21189.70.3, and these rules; or

(4) * * *

(Subd (c) amended effective March 11, 2022; previously amended effective January 1, 2017.)

Rule 3.2221 amended effective March 11, 2022; adopted effective July 1, 2014; previously amended effective January 1, 2017.

Rule 3.2222. Filing and service

(a)–(c) * * *

(d) Service of petition in action regarding ~~leadership project and capitol building annex project~~ streamlined CEQA project other than the Sacramento arena project

If the petition or complaint in an action governed by these rules and relating to a streamlined CEQA project other than the Sacramento arena project ~~leadership project or a capitol building annex project~~ is not personally served on any respondent public agency, any real party in interest, and the Attorney General within three court days following filing of the petition, the time for filing petitioner's briefs on the merits provided in rule 3.2227(a) and rule 8.702(e)(f) will

1 be decreased by one day for every additional two court days in which service is not
2 completed, unless otherwise ordered by the court for good cause shown.

3
4 *(Subd (d) amended effective March 11, 2022; previously amended effective January 1,*
5 *2017.)*
6

7 (e) * * *

8
9 *Rule 3.2222 amended effective March 11, 2022; adopted effective July 1, 2014; previously*
10 *amended effective January 1, 2017.*
11

12 **Rule 3.2223. Petition**

13
14 In addition to any other applicable requirements, the petition must:

- 15
16 (1) On the first page, directly below the case number, indicate that the matter is
17 ~~either a “Sacramento Arena CEQA Challenge,” or an “Environmental~~
18 ~~Leadership CEQA Challenge,” or a “Capitol Building Annex Project” a~~
19 “Streamlined CEQA Project”;
20
21 (2) State one of the following:
22
23 (A) The proponent of the project at issue provided notice to the lead agency
24 that it was proceeding under Public Resources Code section 21168.6.6,
25 21168.6.7, or 21168.6.8 (whichever is applicable) and is subject to this
26 rule; or
27
28 (B) The project at issue was certified by the Governor as a leadership
29 project under Public Resources Code sections 21182–21184 and is
30 subject to this rule; or
31
32 (C) The project at issue is an expanded capitol building annex project as
33 defined by Public Resources Code section 21189.50 and is subject to
34 this rule; or
35
36 (D) The project at issue is an Old Town Center project as defined by Public
37 Resources Code section 21189.70 and is subject to this rule;
38
39 (3) If a leadership project, provide notice that the person or entity that applied for
40 certification of the project as a leadership project must, if the matter goes to
41 the Court of Appeal, make the payments required by ~~Public Resources Code~~
42 ~~section 21183(f)~~ rule 8.705; and
43
44 (4) If an Oakland ballpark or Inglewood arena project, provide notice that the
45 person or entity that applied for certification of the project as an Oakland
46 ballpark or Inglewood arena project must make the payments required by rule

1 3.2240 and, if the matter goes to the Court of Appeal, the payments required
2 by rule 8.705; and

3
4 (4)(5) * * *

5
6 *Rule 3.2223 amended effective March 11, 2022; adopted effective July 1, 2014; previously*
7 *amended effective January 1, 2017.*

8
9 **Rule 3.2240. Trial Court Costs in Oakland Ballpark and Inglewood Arena Projects**

10
11 In fulfillment of the provisions in Public Resources Code sections 21168.6.7 and
12 21168.6.8 regarding payment of trial court costs with respect to cases concerning certain
13 streamlined CEQA projects:

- 14
15 (1) Within 10 days after service of the petition or complaint in a case concerning an
16 Oakland ballpark project or an Inglewood arena project, the person or entity that
17 applied for certification of the project as a streamlined CEQA project must pay a
18 fee of \$120,000 to the court.
19
20 (2) If the court incurs the costs of any special master appointed by the court in the case
21 or of any contract personnel retained by the court to work on the case, the person or
22 entity that applied for certification of the project must also pay, within 10 days of
23 being ordered by the court, those incurred or estimated costs.
24
25 (3) If the party fails to timely pay the fee or costs specified in this rule, the court may
26 impose sanctions that the court finds appropriate after notifying the party and
27 providing the party with an opportunity to pay the required fee or costs.
28
29 (4) Any fee or cost paid under this rule is not recoverable.

30
31 *Rule 3.2240 adopted effective March 11, 2022.*
32

33
34 **Chapter 1. Review of California Environmental Quality Act Cases Under Public**
35 **Resources Code Sections 21168.6.6, 21178 21189.3, and 21189.50 21189.57**
36 **Involving Streamlined CEQA Projects**
37

38 **Rule 8.700. Definitions and application**

39
40 **(a) Definitions**

41
42 As used in this chapter:

- 43
44 (1) A “streamlined CEQA project” means any project within the definitions
45 stated in (2) through (7).
46

1 (1)(2) An “environmental leadership development project” or “leadership project”
2 means a project certified by the Governor under Public Resources Code
3 sections 21182–21184.
4

5 (2)(3) The “Sacramento entertainment and sports center project” or “Sacramento
6 arena project” means an entertainment and sports center project as defined by
7 Public Resources Code section 21168.6.6, for which the proponent provided
8 notice of election to proceed under that statute described in section
9 21168.6.6(j)(1).
10

11 (4) An “Oakland sports and mixed-use project” or “Oakland ballpark project”
12 means a project as defined in Public Resources Code section 21168.6.7 and
13 certified by the Governor under that section.
14

15 (5) An “Inglewood arena project” means a project as defined in Public Resources
16 Code section 21168.6.8 and certified by the Governor under that section.
17

18 (3)(6) An “expanded capitol building annex project” means a state capitol building
19 annex project, annex project–related work, or state office building project as
20 defined by Public Resources Code section 21189.50.
21

22 (7) An “Old Town Center transit and transportation facilities project” or “Old
23 Town Center project” means a project as defined in Public Resources Code
24 section 21189.70.
25

26 *(Subd (a) amended effective March 11, 2022; previously amended effective January 1,*
27 *2017.)*
28

29 **(b) Proceedings governed**
30

31 The rules in this chapter govern appeals and writ proceedings in the Court of
32 Appeal to review a superior court judgment or order in an action or proceeding
33 brought to attack, review, set aside, void, or annul the certification of the
34 environmental impact report or the granting of any project approvals for ~~an~~
35 ~~environmental leadership development project, the Sacramento arena project, or a~~
36 ~~capitol building annex~~ a streamlined CEQA project.
37

38 *(Subd (b) amended effective March 11, 2022; previously amended effective January 1,*
39 *2017.)*
40

41 *Rule 8.700 amended effective March 11, 2022; adopted effective July 1, 2014; previously*
42 *amended effective January 1, 2017.*
43
44
45

1 **Rule 8.702. Appeals**

2
3 (a) * * *

4
5 (b) **Notice of appeal**

6
7 (1) * * *

8
9 (2) *Contents of notice of appeal*

10
11 The notice of appeal must:

- 12
13 (A) State that the superior court judgment or order being appealed is
14 governed by the rules in this chapter;
15
16 (B) Indicate whether the judgment or order pertains to ~~the Sacramento~~
17 ~~arena project, a leadership project, or a capitol building annex a~~
18 streamlined CEQA project; and
19
20 (C) If the judgment or order being appealed pertains to a leadership project,
21 an Oakland ballpark project, or an Inglewood arena project, provide
22 notice that the person or entity that applied for certification or approval
23 of the project as ~~a leadership~~ such a project must make the payments
24 required by rule 8.705.
25

26 *(Subd (b) amended effective March 11, 2022; previously amended effective January 1,*
27 *2016, and January 1, 2017.)*
28

29 (c)–(e) * * *

30
31 (f) **Briefing**

32
33 (1)–(3) * * *

34
35 (4) *Extensions of time to file briefs*

36
37 If the parties stipulate to extend the time to file a brief under rule 8.212(b),
38 they are deemed to have agreed that the statutorily prescribed time for
39 resolving the action may be extended ~~beyond 270 days~~ by the number of days
40 by which the parties stipulated to extend the time for filing the brief and, to
41 that extent, to have waived any objection to noncompliance with the deadlines
42 for completing review stated in Public Resources Code sections 21168.6.6(e)–
43 ~~(d)~~ 21168.6.8, 21185, and 21189.51, and 21189.70.3 for the duration of the
44 stipulated extension.
45

46 (5) * * *

(Subd (f) amended effective March 11, 2022; previously amended effective January 1, 2017.)

(g) * * *

Rule 8.702 amended effective March 11, 2017; adopted effective July 1, 2014; previously amended effective January 1, 2016, and January 1, 2017.

Advisory Committee Comment

Subdivision (b). It is very important to note that the time period to file a notice of appeal under this rule is the same time period for filing most postjudgment motions in a case regarding the Sacramento arena project, and in a case regarding ~~a leadership project or capitol building annex~~ any other streamlined CEQA project, the deadline for filing a notice of appeal may be earlier than the deadline for filing a motion for a new trial, a motion for reconsideration, or a motion to vacate the judgment.

Rule 8.703. Writ proceedings

(a) * * *

(b) Petition

(1) * * *

(2) *Contents of petition*

In addition to any other applicable requirements, the petition must:

- (A) State that the superior court judgment or order being challenged is governed by the rules in this chapter;
- (B) Indicate whether the judgment or order pertains to ~~the Sacramento arena project, a leadership project, or a capitol building annex~~ a streamlined CEQA project; and
- (C) If the judgment or order pertains to a leadership project, an Oakland ballpark project, or an Inglewood arena project, provide notice that the person or entity that applied for certification of the project as ~~a leadership~~ such a project must make the payments required by rule 8.705.

Subd (b) amended effective March 11, 2022; previously amended effective January 1, 2016, and January 1, 2017.)

1 *Rule 8.703 amended effective March 11, 2022; adopted effective July 1, 2014; previously*
2 *amended effective January 1, 2016, and January 1, 2017.*

3
4
5 **Rule 8.705. Court of Appeal costs in leadership certain streamlined CEQA projects**

6
7 In fulfillment of the provisions in Public Resources Code sections 21168.6.7, 21168.6.8,
8 and 21183 regarding payment of the Court of Appeal's costs with respect to cases
9 concerning leadership, Oakland ballpark, and Inglewood arena projects:

10
11 (1) Within 10 days after service of the notice of appeal or petition in a case concerning
12 a leadership project, the person ~~who~~ or entity that applied for certification of the
13 project as a leadership project must pay a fee of \$100,000 to the Court of Appeal.

14
15 (2) Within 10 days after service of the notice of appeal or petition in a case concerning
16 an Oakland ballpark project or Inglewood arena project, the person or entity that
17 applied for certification of the project as an Oakland ballpark project or Inglewood
18 arena project must pay a fee of \$140,000 to the Court of Appeal.

19
20 ~~(2)~~(3) If the Court of Appeal incurs the costs of any special master appointed by the Court
21 of Appeal in the case or of any contract personnel retained by the Court of Appeal
22 to work on the case, the person ~~who~~ or entity that applied for certification of the
23 project as a leadership project, an Oakland ballpark project, or an Inglewood arena
24 project must also pay, within 10 days of being ordered by the court, those incurred
25 or estimated costs.

26
27 ~~(3)~~(4) If the party fails to timely pay the fee or costs specified in this rule, the court may
28 impose sanctions that the court finds appropriate after notifying the party and
29 providing the party with an opportunity to pay the required fee or costs.

30
31 (5) Any fee or cost paid under this rule is not a recoverable cost.

32
33 *Rule 8.705 amended effective March 11, 2022; adopted effective July 1, 2014.*

34
35
36 **Rule 10.68. Data Analytics Advisory Committee**

37
38 **(a) Areas of focus**

39
40 The committee makes recommendations to the Judicial Council regarding the
41 collection, use, and sharing of judicial branch data and information to inform
42 decisionmaking, promote transparency, and improve the administration of justice
43 while ensuring the security of nonpublic data and data sources.
44

1 **(b) Additional duties**

2
3 In addition to the duties described in rule 10.34, the committee must:

- 4
5 (1) Develop and recommend policies, or revisions to existing policies,
6 concerning standards and measures to use in collecting, analyzing and
7 sharing data and information that will advance the goals of increased access
8 to justice, greater transparency and accountability, and enhanced delivery of
9 services to the public.
- 10
11 (2) Develop and recommend performance measures, studies, and methodologies
12 to measure and report on court administration, practices, and procedures,
13 including workload assessments; and
- 14
15 (3) Identify, analyze, and report on emerging issues related to branch data and
16 information, including usage of data and information to support branch
17 projects and initiatives.

18
19 **(c) Membership**

20
21 The committee must include at least one member from each of the following
22 categories:

- 23
24 (1) Appellate justice;
- 25
26 (2) Trial court judicial officer;
- 27
28 (3) Trial court or appellate court administrator; and
- 29
30 (4) Court staff with data and information management expertise.

31
32 **(d) Member selection**

33
34 Factors to be considered in making all appointments to the committee include a
35 candidate's general expertise and experience in data, information, or technology
36 governance and management.

37
38 *Rule 10.68 adopted effective March 11, 2022.*

39
40 **Appendix I**
41 **Emergency Rules Related to COVID-19**

1
2 **Emergency rule 3. Use of technology for remote appearances**

3
4 (a) * * *

5
6 (b) **Sunset of rule**

7
8 This rule will ~~remain in effect until 90 days after the Governor declares that the~~
9 ~~state of emergency related to the COVID-19 pandemic is lifted, or until sunset on~~
10 June 30, 2022, unless otherwise amended or repealed by the Judicial Council.

11
12 *(Subd (b) amended effective March 11, 2022.)*

13
14 *Emergency Rule 3 amended effective March 11, 2022; adopted April 6, 2020; previously*
15 *amended effective January 1, 2022.*

16
17
18 **Emergency rule 5. Personal appearance waivers of defendants during health**
19 **emergency**

20
21 (a)–(e) * * *

22
23 (f) **Sunset of rule**

24
25 This rule will ~~remain in effect until 90 days after the Governor declares that the~~
26 ~~state of emergency related to the COVID-19 pandemic is lifted, or until sunset on~~
27 June 30, 2022, unless otherwise amended or repealed by the Judicial Council.

28
29 *(Subd (f) amended effective March 11, 2022.)*

30
31 *Emergency Rule 5 amended effective March 11, 2022; adopted effective April 6, 2020.*

32
33
34 **Emergency rule 6. Emergency orders: juvenile dependency proceedings**

35
36 (a)–(c) * * *

37
38 (d) **Sunset of rule**

39
40 This rule will ~~remain in effect until 90 days after the Governor declares that the~~
41 ~~state of emergency related to the COVID-19 pandemic is lifted, or until sunset on~~
42 June 30, 2022, unless otherwise amended or repealed by the Judicial Council.

1 *(Subd (d) amended effective March 11, 2022.)*

2
3 * * *

4
5 *Emergency Rule 6 amended effective March 11, 2022; adopted April 6, 2020; previously*
6 *amended effective January 21, 2022.*

7
8
9 **Emergency rule 7. Emergency orders: juvenile delinquency proceedings**

10
11 **(a)–(e) * * ***

12
13 **(f) Sunset of rule**

14
15 This rule will ~~remain in effect until 90 days after the Governor declares that the~~
16 ~~state of emergency related to the COVID-19 pandemic is lifted, or until sunset on~~
17 June 30, 2022, unless otherwise amended or repealed by the Judicial Council.

18
19 *(Subd (f) amended effective March 11, 2022.)*

20
21 * * *

22
23 *Emergency Rule 7 amended effective March 11, 2022; adopted April 6, 2020; previously*
24 *amended effective January 21, 2022.*

25
26
27 **Emergency rule 8. Emergency orders: temporary restraining or protective orders**

28
29 **(a)–(e) * * ***

30
31 **(f) Sunset of rule**

32
33 This rule will sunset on June 30, 2022, unless otherwise amended or repealed by
34 the Judicial Council.

35
36 *(Subd (f) adopted effective March 11, 2022.)*

37
38 *Emergency Rule 8 amended effective March 11, 2022; adopted effective April 6, 2020; previously*
39 *amended effective April 20, 2020.*

40
41
42 **Emergency rule 9. Tolling statutes of limitations for civil causes of action**

1 (a)–(b) * * *

2
3 **(c) Sunset of rule**

4
5 This rule will sunset on June 30, 2022, unless otherwise amended or repealed by
6 the Judicial Council. This sunset does not nullify the effect of the tolling of the
7 statutes of limitation and repose under the rule.
8 *(Subd (c) adopted effective March 11, 2022.)*
9

10 *Emergency Rule 9 amended effective March 11, 2022; adopted effective April 6, 2020; previously*
11 *amended effective May 29, 2020.*
12
13

14 **Advisory Committee Comment**
15

16 Emergency rule 9 is intended to apply broadly to toll any statute of limitations on the filing of a
17 pleading in court asserting a civil cause of action. The term “civil causes of action” includes
18 special proceedings. (See Code Civ. Proc., §§ 312, 363 [“action,” as used in title 2 of the code (Of
19 the Time of Commencing Civil Actions), is construed “as including a special proceeding of a
20 civil nature”]; special proceedings of a civil nature include all proceedings in title 3 of the code,
21 including mandamus actions under §§ 1085, 1088.5, and 1094.5—all the types of petitions for
22 writ made for California Environmental Quality Act (CEQA) and land use challenges]; see also
23 Pub. Resources Code, § 21167(a)–(e) [setting limitations periods for civil “action[s]” under
24 CEQA].)
25

26 The rule also applies to statutes of limitations on filing of causes of action in court found in codes
27 other than the Code of Civil Procedure, including the limitations on causes of action found in, for
28 example, the Family Code and Probate Code.
29

30 **Subdivision (c).** The sunset of the rule does not nullify the effect of the tolling of the statutes of
31 limitation and repose established by the rule. Depending on the specific facts of the case and the
32 applicable statute of limitation or repose, the effect of the tolling may survive beyond the sunset
33 date of the rule. For example, if the right to file a cause of action subject to the four-year statute
34 of limitation in Code of Civil Procedure section 337 first accrued on February 15, 2020, the
35 statute of limitation, having been tolled from April 6, 2020, until October 1, 2020, under
36 subdivision (a), would expire in August 2024 rather than February 2024.
37
38

39 **Emergency rule 10. Extensions of time in which to bring a civil action to trial**
40

41 (a)–(b) * * *
42

1 **(c) Sunset of rule**

2
3 This rule will sunset on June 30, 2022, unless otherwise amended or repealed by
4 the Judicial Council. This sunset does not nullify the effect of the extension of time
5 in which to bring a civil action to trial under the rule.
6

7 *(Subd (c) adopted effective March 11, 2022.)*
8

9 *Rule 10 amended effective March 11, 2022; adopted effective April 6, 2020.*
10
11

12 **Advisory Committee Comment**
13

14 The sunset of the rule does not nullify the effect of the six-month extension established by the
15 rule for all civil actions filed on or before April 6, 2020. Depending on the specific facts of the
16 case, the effect of the extension may survive beyond the sunset date of the rule. For example, if a
17 civil action subject to Code of Civil Procedure section 583.310 was filed on February 15, 2020,
18 the time in which to bring the action to trial would fall in August 2025, having been extended by
19 six months for a total time of five years and six months, rather than February 2025.
20
21

22 **Emergency rule 13. Effective date for requests to modify support**
23

24 **(a)–(d) * * ***
25

26 **(e) Sunset of rule**
27

28 ~~This rule will remain in effect until 90 days after the Governor declares that the~~
29 ~~state of emergency related to the COVID-19 pandemic is lifted, or until sunset on~~
30 June 30, 2022, unless otherwise amended or repealed by the Judicial Council.
31

32 *(Subd (e) amended effective March 11, 2022.)*
33

34 *Emergency Rule 13 amended effective March 11, 2022; adopted effective April 20, 2020.*
35

36 *Appendix I amended effective March 11, 2022; adopted effective April 6, 2020; previously*
37 *amended effective April 17, 2020, April 20, 2020, June 20, 2020, August 13, 2020, November 13,*
38 *2020, January 1, 2022, January 21, 2022.*
39